does not vindicate my opinions. Above all, let me personally assure them, that the prostration of state-rights is no object with me; but that I remain in perfect confidence, that with the power, which the people and the legislatures of the states indirectly hold over almost every movement of the national government, the states need not fear an assault from bold ambition, nor any approaches of covered stratagem.

The Court held the case under advisement, from the 5th to the 18th of February, when they delivered their opinions *seriatim*.

IREDELL, Justice.—This great cause comes before the court, on a motion made by the attorney-general, that an order be made by the court to the following effect: "That unless the state of Georgia shall, after reasonable notice of this motion, cause an appearance to be entered on behalf of the said state, on the fourth day of next term, or show cause to the contrary, judgment shall be entered for the plaintiff, and a writ of inquiry shall be awarded." Before such an order be made, it is proper that this court should be satisfied it hath cognisance of the suit; for, to be sure, we ought not to enter a conditional judgment (which this would be), in a case where we were not fully persuaded we had authority to do so.

This is the first instance wherein the important question involved in this cause has come regularly before the court. In the Maryland case, it did not, because the attorney-general of the state voluntarily appeared. We could not, therefore, without the greatest impropriety, have taken up the question suddenly. That case has since been compromised; but had it proceeded to trial, and a verdict been given for the plaintiff, it would have been our duty, previous to our giving judgment, to have well *considered whether we were warranted in giving it. I had then great doubts upon my [*430 mind, and should, on such a case, have proposed a discussion of the subject. Those doubts have increased since, and after the fullest consideration I have been able to bestow on the subject, and the most respectful attention to the able argument of the attorney-general, I am now decidedly of opinion, that no such action as this before the court can legally be maintained.

The action is an action of *assumpsit*. The particular question then before the court, is, will an action of *assumpsit* lie against a state? This particular question (abstracted from the general one, viz., whether, a state can in any instance be sued?) I took the liberty to propose to the consideration of lhe attorney-general, last term. I did so, because I have often found a great deal of confusion to arise from taking too large a view at once, and I had found myself embarrassed on this very subject, until I considered the abstract question itself. The attorney-general has spoken to it, in deference to my request, as he has been pleased to intimate, but he spoke to this particular question slightly, conceiving it to be involved in the general one; and after establishing, as he thought, that point, he seemed to consider the other followed of course. He expressed, indeed, some doubt how to prove what appeared so plain. It seemed to him (if I recollect right), to depend principally on the solution of this simple question; can a state assume? But the attorney-general must know, that in England, certain judicial proceedings, not inconsistent with the sovereignty, may take place against the crown, but that an action of *assumpsit* will not lie. Yet, surely, the King can assume as well as a state. So can the United States themselves, as well as